Montgomery County District Court

Cause No. 2025-CV-0019

Caleb Hernandez, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-11-25
Counsel for defendant:	Stephanie Williams, Ashford & Lyle LLP

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the evidence, as required by the Texas Rules of Civil Procedure.

For further answer, and without assuming any buredn of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Defendant asserts proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code. Any injury Plaintiff sustained was caused in whole or in part by Plaintiff's own negligence, including any failure to keep a proper lookout, to yield the right-of-way, or to exercise ordinary care while proceeding through the intersection. Any recovery must be reduced in accordance with Plaintiff's percentage of responsibility, and Plaintiff may be barred if that percentage exceeds fifty percent.

Second, Defendant asserts that the sole proximate cause of the occurrence was the negligence of a person or entity other than Defendant, over whom Defendant had no control and for whose conduct Defendant is not responsible.

Third, Defendant asserts that Plaintiff failed to mitigate damages by failing to follow reasonable medical advice and by incurring medical expenses that were unnecessary or not reasonable in amount.

Defendant reserves the right to amend this Answer as discovery proceeds.